

15. Any expenses under this Act payable by the council of a county or county borough shall be defrayed out of the county fund or out of the borough fund or borough rate, as the case may be.

Expenses of local supervising authority.

16. Nothing in this Act respecting midwives shall apply to legally qualified medical practitioners.

Act not to apply to medical practitioners.

17. This Act shall not extend to Scotland or Ireland.

The General Medical Council shall act by the English Branch Council, which, for all purposes of this Act, shall occupy the place of the General Medical Council.

Extent of Act and action by English Branch Council.

18. In this Act—

Definitions.

The term "midwife" means a woman who is certified under this Act, unless the context otherwise requires ;

"Central Midwives Board" means the Board constituted under this Act for the purpose of carrying out the provisions of this Act.

19. This Act may be cited as the Midwives Act, 1902. It shall, except as otherwise provided by this Act, come into operation on the first day of April one thousand nine hundred and three.

Short title and commencement.

CHAPTER 18.

An Act to amend the Law relating to issue of Licences for the Sale of Intoxicating Liquors in Ireland.

[31st July 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act shall extend to Ireland only, and may be cited as the Licensing (Ireland) Act, 1902.

Extent and title of Act.

2. From and after the passing of this Act, no licence shall be granted for the sale of intoxicating liquors, whether for consumption on or off the premises, except—

Provision against the issue of new licences.

- (1) For premises which are now licensed or which were licensed at any time since the first day of January one thousand nine hundred and two ; or
- (2) For an hotel, which expression shall refer to a house containing at least ten apartments set apart and used exclusively for the sleeping accommodation of travellers, and having no public bar for the sale of intoxicating liquors ; or
- (3) For a railway refreshment room.

3. Where, by reason of the expiration of a lease, a licence for the sale of intoxicating liquors for consumption on the premises comprised in the lease is extinguished or surrendered, the licensing authority may, notwithstanding anything in this Act, grant a licence for suitable premises in the immediate vicinity of the premises to which the licence so extinguished or surrendered was attached.

Expiring leases.

Limit as to
population.

4. Where, owing to increase in population, there is a growth or extension of any city or town, and the licensing authority are satisfied that the restrictions in this Act on the granting of licences may be relaxed, they may grant a licence to any applicant, notwithstanding that the same would be otherwise forbidden by this Act; provided that such licence shall be granted only for premises situate in the parish in which such increase in population has taken place, and in substitution for an existing licence or licences held in respect of premises situate within the city or town, as the case may be, comprising the whole or any part of the parish.

Limit as to
valuation of
licensed
premises.

5. In the case of applications under section two, subsection two, and sections three and four, the premises shall be valued under the Irish Valuation Acts at not less than—

Thirty pounds in the Dublin Metropolitan Police District and the city of Belfast;

Twenty pounds in the cities of Cork, Limerick, Waterford, and Londonderry;

Fifteen pounds in the city of Kilkenny and the town of Galway;

Twelve pounds in any other town of over ten thousand inhabitants at the census ascertained next preceding the application; and

Ten pounds in all other places.

Exception in
favour of
adjoining
premises.

6. Nothing in this Act shall operate to prevent the granting of new licences, where the licensing authority thinks fit, to premises attached to or adjoining premises licensed for the sale of intoxicating liquors at the date of the passing of this Act; provided always that such new licence as last herein-before mentioned shall only be granted in order to render the said licensed premises more suitable for the business carried on therein.

Transfers not
to be affected.

7. Nothing in this Act shall be taken to affect the law as to the transfer or assignment of licences from one person to another or as to the renewal of licences.

Definitions.

8. In this Act—

The expression "increase in population" shall be taken to mean an increase of not less than twenty-five per cent. of the population according to the last census;

The expression "licence" means any licence for the sale of intoxicating liquor granted by an officer of excise, other than a wholesale beer dealer's licence or a licence required for a military or constabulary canteen or a licence which can be granted without the production of a certificate of a recorder or justice; and

Other expressions shall have respectively the same meaning as in the Licensing (Ireland) Acts, 1833 to 1900, and for this purpose this Act shall be construed with the said Acts.

Limit of
operation of
Act.

9. This Act shall continue in force until the thirty-first day of December one thousand nine hundred and seven, and no longer unless Parliament shall otherwise determine.